

GORSUCH, J., dissenting

between the founding and the Civil War might have consulted uniformly recited the *Hutchinson* rule as black letter law. Chancellor Kent wrote that “the plea of *autrefois acquit*, resting on a prosecution [in] any civilized state, would be a good plea in any other civilized state.”⁵² Thomas Sergeant explained that “[w]here the jurisdiction of the United States court and of a state Court is concurrent, the sentence of either court, whether of conviction or acquittal, may be pleaded in bar to a prosecution in the other.”⁵³ William Rawle echoed that conclusion in virtually identical words.⁵⁴ Indeed, one early commentator wrote that a “principal reason” for the Double Jeopardy Clause was to prevent successive state and federal prosecutions, which he considered to be against “[n]atural justice.”⁵⁵ Nor did these treatises purport to invent a new rule; they claimed only to recite the traditional one.

This Court’s early decisions reflected the same principle. In *Houston v. Moore*, a Pennsylvania court-martial tried a member of the state militia for desertion under an “act of the legislature of Pennsylvania.”⁵⁶ The defendant objected that the state court-martial lacked jurisdiction because federal law criminalized the same conduct and prosecuting him in the state court could thus expose him to double jeopardy. In an opinion by Justice Washington, the Court disagreed and allowed the prosecution, but reassured the defendant that “if the jurisdiction of the two Courts be concurrent, the sentence of either Court, either of conviction or acquittal, might be [later] pleaded in bar of the prosecution before the other.”⁵⁷ In dissent, Justice Story thought the state court

⁵² 1 J. Kent, *Commentaries on American Law* 176 (1826).

⁵³ T. Sergeant, *Constitutional Law* 278 (1830).

⁵⁴ W. Rawle, *View of the Constitution* 191 (1825).

⁵⁵ J. Bayard, *Brief Exposition of the Constitution of the United States* 150–151 (1845).

⁵⁶ 5 Wheat. 1, 12 (1820).

⁵⁷ *Id.*, at 31.